Select+® Insurance Policy

CHUBB®

Select+® Insurance Policy

General

Applicable To The Whole Policy

1. Important Notices Applicable To The Whole Policy

The Insured's Duty of Disclosure

Before entering into a contract of general insurance with **Chubb**, each prospective insured has a duty, under the Insurance Act Cap 142, to disclose to **Chubb** every matter that it knows, or a reasonable person in the circumstances could be expected to know, is relevant to **Chubb**'**s** decision whether to accept the risk of the insurance and, if so, on what terms.

It has the same duty to disclose those matters to **Chubb** before renewal, extension, variation or reinstatement of a contract of general insurance with **Chubb**.

An **Insured**'**s** duty however does not require disclosure of any matter:

- that diminishes the risk to be undertaken by **Chubb**;
- that is of common knowledge;
- that **Chubb** knows or, in the ordinary course of its business, ought to know;
- as to which compliance with your duty is waived by **Chubb**.

It is important that each prospective insured understands all information provided in support of the application for insurance and that it is correct, as each prospective insured will be bound by the answers and by the information it has provided. If a prospective insured does not understand any part of this notice, the insured should obtain independent advice.

As a prospective insured, the duty of disclosure continues after the application for insurance has been completed up until the time the contract of insurance is entered into, varied or renewed.

Consequences of Non-Disclosure

If a prospective insured fails to comply with its duty of disclosure, **Chubb** may be entitled, without prejudice to its other rights to reduce its liability under the contract in respect of a claim or may cancel the contract. **Chubb** may also have the option of avoiding the contract from its beginning.

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This is a **Chubb** Package Policy.

Please read the entire **Policy** carefully.

The operative **Sections** of this **Policy** are as indicated in the **Schedule**. Unless a particular **Section** is identified in the **Schedule** as being operative, it is of no effect and no cover is granted under it.

This **Policy** and the **Schedule** shall be read together as one document and any word or expression to which a specific meaning has been attached in any part of this **Policy** or in the **Schedule** shall bear such specific meaning wherever it may appear.

In the event of any conflict between the General Terms, Conditions, Exclusions and limitations and any term, Condition, Exclusion, and limitation contained within any **Section**, those in the **Section** shall prevail for the purposes of the cover contained within that **Section** only.

This **Policy** may be changed only by a written endorsement signed by **Chubb**.

2. General Definitions Applicable To All Sections Of This Policy

Throughout this **Policy** the following Definitions apply, unless superseded by a specific Definition in a **Section** or unless otherwise stated within a **Section**:

2.1 **Aircraft** means any vessel, craft or thing made or intended to fly or move in or through the atmosphere or space.

2.2 **Business** means the business as described in the **Schedule** including:

(a) **Insured Premises** used by the **Insured** including their repair and maintenance;

(b) facilities the **Insured** provides for the benefit of **Employees**;

(c) emergency services or security services of the business;

(d) participation in exhibitions or conferences in relation to the business;

(e) sponsorship by the **Insured** of sporting, charity, literary and theatrical events and competitions;

(f) repair and maintenance of the **Insured's** own **Vehicles**; and

(g) former activities declared by the **Insured** and agreed by **Chubb** in writing.

2.3 **Chubb** means Chubb Insurance Singapore Limited.

2.4 **Damage** means direct physical:

(a) loss of;

(b) theft of;

(c) destruction of; or

(d) damage to,

Property from any sudden and accidental cause except as hereafter excluded.

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2.5 **Deductible** means the amount set out in the **Schedule** which is borne and payable by the **Insured**, arising from each and every **Insured Event**, **Occurrence**, loss or claim.

2.6 **Electronic Equipment and/or Device** means computer or computer related equipment, including but not limited to

(a) computer hardware, including microprocessors;

(b) computer application software;

(c) computer operating systems and related software;

(d) computer networks;

(e) microprocessors (computer chips) not part of any computer system; and

(f) any other computerised or electronic equipment or components,

which is the **Property** of the **Insured**.

2.7 **Employee** means a person in the **Insured's** regular service whom the **Insured** compensates by wages, salary, fees and/or commissions and who the **Insured** has the right to direct in the performance of this service.

2.8 **Insured** means the party or parties described as such in the **Schedule**.

2.9 **Insured Event** means any event resulting in **Damage** that takes place during the **Policy Period** at the **Insured Premises** or as otherwise provided for by this **Policy**.

2.10 **Insured Item** means an item insured by this **Policy** set out in the **Schedule**.

2.11 **Insured Person** means any director, partner or **Employee** of the **Insured** and the **Insured** where the **Insured** is a sole proprietor of the **Business**.

2.12 **Insured Premises** means the building and the land within the boundaries belonging to the **Insured** or for which the **Insured** is responsible.

2.13 **Interruption** means reductions in **Turnover** due to the **Damage**.

2.14 **Limit of Liability** means the amount(s) set out in the **Schedule** which is the most **Chubb** will pay under that limit.

2.15 **Media** means all forms of magnetic and optical tapes, discs, drives or other electronic storage devices for use in any computers or electronic data processing equipment.

2.16 **Money** means cash, bank and currency notes, cheques, money orders, postal orders, current postage stamps and insurance stamps all pertaining to the **Business** and belonging to the **Insured** or for which the **Insured** is responsible.

2.17 **Natural Catastrophe** means cyclone, flood, hurricane, earthquake, landslide, tornado, tsunami, typhoon, volcanic eruption, wind storm, hailstorm and wildfire.

2.18 **Occurrence** means all events of a series consequent on or attributed to one source or original cause.

2.19 **Personal Injury** means:

(a) bodily injury, death, illness or disability;

(b) false arrest, wrongful detention, wrongful imprisonment or malicious prosecution;

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(c) assault and battery not committed by or at the direction of the **Insured**, unless committed for the purpose of preventing or eliminating danger to persons or property; and

(d) wrongful entry or wrongful eviction.

2.20 **Policy** means this policy wording, the **Schedule**, the quotation, the insurance proposal and any endorsements.

2.21 **Policy Jurisdiction** means The Republic of Singapore.

2.22 **Policy Period** means the period of time stated in the **Schedule**, or any subsequent period for which the **Insured** shall have paid and **Chubb** shall have accepted a renewal **Premium**.

2.23 **Policy Territory** means The Republic of Singapore.

2.24 **Pollutants** means any solid, liquid, gaseous or thermal irritant or contaminant, including but not limited to smoke, vapours, soot, fumes, acids, alkalis, chemicals and waste. Waste includes, but is not limited to, material to be recycled, reconditioned or reclaimed.

2.25 **Pollution** means any **Damage** or **Personal Injury** caused by **Pollutants**.

2.26 **Premium** means the amount set out in the **Schedule**.

2.27 **Product** means any goods or products (after they have ceased to be in the possession or under the control of the **Insured**) manufactured, constructed, erected, installed, repaired, serviced, treated, grown, extracted, produced, processed, assembled, imported, sold, supplied or distributed by the **Insured** (including any labelling, packing materials, instructions and directions associated therewith).

2.28 **Property** means tangible property.

2.29 **Property Insured** means **Property** described and identified as covered in the **Schedule** unless excluded.

2.30 **Rent** means periodic payments made by the **Insured** for the lease of the **Insured Premises**.

2.31 **Schedule** means the schedule issued with this **Policy** wording or any subsequent or amended version of that schedule issued by **Chubb**.

2.32 **Section** means only the section(s) identified in the Operative Sections List in the **Schedule** which are marked "yes".

2.33 **Sum Insured** means the sum insured set out in the **Schedule**.

2.34 **Turnover** means the money (less discounts, if any allowed) paid or payable to the **Insured** for goods sold and delivered and for services rendered in course of the **Business** at the **Insured Premises**.

2.35 **Vacant** means any building or portion of a building that is:

(a) Not physically occupied by the **Insured** or any of the **Insured's Employees** during the **Insured's** normal working hours; or

(b) Not used for the purpose of the **Business** and/or empty, disused untenanted; or

(c) Awaiting refurbishment, redevelopment, renovation, or demolition.

2.36 **Vehicle** means any type of machine on wheels or on caterpillar tracks made or intended to be self-propelled by mechanical power.

2.37 **Vicinity** means 250 metres.

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2.38 **Watercraft** means any vessel, craft or thing made or intended to float on or in or travel on, through or under the water.

3. General Conditions Applicable To All Sections Of This Policy

3.1 Alteration

The **Insured** shall give notice to **Chubb**, of any material alteration or change in circumstances affecting the risk covered and until **Chubb** agrees in writing to accept liability for such altered risk, **Chubb** shall have no liability under this **Policy** for such altered risk.

3.2 Arbitration

All disputes or differences under this **Policy** shall be referred to arbitration in accordance with the Arbitration Act (Chapter 10) or any statutory re-enactment thereof. The arbitration shall be heard by a single arbitrator to be agreed by the parties hereto within 21 days of the commencement of the arbitration. Arbitration proceedings shall be conducted in accordance with the rules of the Singapore International Arbitration Centre.

3.3 Applicable Law

Should any dispute arise concerning this **Policy**, the dispute will be determined in accordance with the law of Singapore.

3.4 Assignment

Assignment of interest under this **Policy** shall not bind **Chubb** without its prior consent.

3.5 Audits and Inspection

At any time, the **Insured** shall make available to **Chubb** (and **Chubb** shall have the right to audit, inspect and copy) any books, papers and other records of the **Insured** (including those of its agents and brokers) in connection with this **Policy** or the subject matter hereof.

3.6 Cancellation

(a) The **Insured** may cancel this **Policy** by giving notice in writing to **Chubb**. If such notice is given, the cancellation will take effect on the day the notice is received by **Chubb**.

(b) **Chubb** may cancel this **Policy** by giving notice in writing to the **Insured**. Such cancellation is to take effect 30 days from the time notification is received by the **Insured**.

(c) Upon cancellation by the **Insured** or **Chubb** the **Insured** will receive a pro rata refund of premium for the unexpired **Policy Period** subject to:

(i) any minimum **Premium**; and

(ii) the **Insured** complying with all **Policy** terms, Conditions, Exclusions and limitations.

If **Chubb** has received a notification of an actual or potential **Insured Event**, **Occurrence**, loss or claim under the **Policy**, in which case the **Premium** will be deemed to be fully earned and none will be repayable to the **Insured**.

(d) When the **Premium** is subject to adjustment, cancellation will not affect the obligation of the **Insured** to supply to **Chubb** such information as is necessary to permit the premium adjustment to be calculated and to pay the amount of the adjustment applicable up to the date of cancellation.

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3.7 Claims Procedure

On the happening of any **Insured Event**, **Occurrence** or loss that may result in a claim under the **Policy**, the **Insured** must:

(a) notify **Chubb** in writing as soon as reasonably possible, but in any case no later than 30 days after discovery of the **Insured Event**, **Occurrence** or loss which may result in a claim under this **Policy**.

(b) forward to **Chubb** immediately upon receipt every writ, summons, legal process or other communication in connection with any matters relating to any claim.

(c) at the **Insured's** expense, give all necessary information and assistance that **Chubb** may require and provide all detailed particulars and evidence as **Chubb** may require.

(d) not admit liability or make any offer or promise of payment without **Chubb's** written consent.

(e) take immediate actions, at the **Insured's** own expense, as would a prudent uninsured to minimise and to prevent further **Damage** or **Personal Injury**.

(f) give notice to the police if the **Insured Event**, **Occurrence** or loss is theft or suspected theft or wilful or malicious damage or potentially illegal or criminal activity.

(g) use its best endeavours to preserve all **Property**, any **Product**, appliance and plant and all other things which may assist in the investigation or defence of a claim, or in the exercise of rights of subrogation and so far as may be reasonably practicable no alteration or repair is to be effected without the consent of **Chubb**.

3.8 Clerical Error

Clerical errors made by **Chubb** shall not invalidate insurance otherwise validly in force, nor continue insurance otherwise not validly in force.

3.9 Contribution

If at the time any claim arises under this **Policy** there is any other insurance covering the same **Damage**, **Personal Injury** or loss, **Chubb** shall not be liable to pay or contribute more than its rateable proportion of any claim for such covered **Damage**, **Personal Injury**, loss.

3.10 Contracts (Rights of Third Parties) Act 2001

A person who is not a party to this **Policy** shall have no right under the Contracts (Rights of Third Party) Act (Cap 53B) to enforce any of its terms.

3.11 Currency

Premiums and Benefits payable under this **Policy** shall be in Singapore Dollars unless otherwise set out in the **Schedule**.

All **Premium** transactions are to be administered through the Singapore registered **Insured** and/or entities registered in Singapore only.

3.12 Deductibles

This **Policy** does not cover the amounts of the **Deductibles** set out in the **Schedule** in respect of each and every loss, **Insured Event**, **Occurrence** or claim as ascertained after the application of all other terms, Conditions, Exclusions and limitations of the **Policy**, including any condition of average.

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Warranted that during the currency of the **Policy**, the **Insured** shall not effect insurance in respect of the amounts of the **Deductibles** set out in the **Schedule**.

3.13 **Disclosure**

The **Insured** must disclose to **Chubb** all facts and matters, which might be relevant to **Chubb's** consideration of the **Insured's** proposal, before **Chubb** agreed to insure the **Insured**. If the **Insured** did not do so, **Chubb** is entitled to void the **Policy**. **Chubb** will not do this if all of the following conditions are met:

(a) **Chubb** must have insured the **Insured** before the **Insured** was first aware, or ought reasonably to have been aware after enquiry, of such facts or matters and have continuously insured the **Insured** since then; and

(b) the **Insured** must satisfy **Chubb** that the misrepresentation or failure to disclose was innocent and not intended to mislead **Chubb**; and

(c) **Chubb's** interests must not have been prejudiced as a result.

3.14 **Fraud**

If any claim upon this **Policy**, is fraudulent or if any fraudulent means or devices are used by the **Insured**, or anyone acting on its behalf, to obtain any benefit under this **Policy**, the **Policy** is void.

3.15 **Interest**

No payments under this **Policy** shall carry interest.

3.16 **Jurisdiction**

The cover under this **Policy** shall only apply in respect of judgments which are in the first instance delivered by or obtained from a court or tribunal of competent jurisdiction within the Republic of Singapore.

3.17 **Mergers**

The **Insured** must tell **Chubb** within 30 days if one or more of the **Insureds** merge with another business or after anyone acquires more than 25% of the voting shares of the **Insured** or any one of the **Insureds**.

3.18 **Payment**

Chubb will not make any payment under this **Policy** unless the **Insured** has paid the **Premium**.

3.19 **Premium Adjustment**

If **Premiums** under this **Policy** have been calculated (wholly or in part) upon estimates furnished by the **Insured**, the **Insured** shall keep proper records containing all relevant information and **Chubb** shall be allowed to inspect such records at all reasonable times. The **Insured** shall within one month from the expiry of the **Policy Period** supply to **Chubb** such information as **Chubb** may require, whereupon the **Premium** for such period shall be adjusted and the difference paid by or allowed to the **Insured** as the case may be, subject to any minimum premium.

3.20 **Premium Payment Warranty**

In the event that any **Premium** due is not paid and received in full by **Chubb** within 60 days of the inception of **Policy Period**, then:

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(a) the cover under the **Policy** is automatically terminated immediately after the expiry of that 60-day period;

(b) the automatic termination of the cover shall be without prejudice to any liability incurred within that 60-day period; and

(c) **Chubb** shall be entitled to a pro-rata time on risk premium subject to a minimum of SGD25.00 or as quoted in the **Policy** whichever is greater.

3.21 **Safety and Maintenance**

The **Insured** must at all times take all reasonable steps to safeguard the **Property Insured** and maintain it in a proper state of repair. The **Insured** must also take steps to enforce the observance of all statutory provisions, manufacturer's recommendations and other regulations relating to the safety, use and inspection.

3.22 **Subrogation**

After **Chubb** has made a payment under this **Policy**, **Chubb** will be subrogated to the **Insured**'**s** rights of recovery. The **Insured** must execute all papers and do whatever is necessary to secure any rights including the execution of any documents to enable **Chubb** to bring a suit in the **Insured**'**s** name whether before or after a payment by **Chubb**.

4. General Exclusions Applicable To All Sections Of This Policy

4.1 **NMA 2962 - Biological Or Chemical Materials Exclusion**

It is agreed that this **Policy** excludes loss, **Damage**, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with the actual or threatened malicious use of pathogenic or poisonous, biological or chemical materials regardless of any other cause or event contributing concurrently or in any other sequence thereto.

4.2 **Electronic Equipment and/or Device Exclusion**

This **Policy** does not cover any loss, **Damage**, cost, claim or expense, directly or indirectly, proximately or remotely, whether in whole or in part caused by, resulting from, contributed to, aggravated by or consisting of any malfunction, derangement or inability of:

(a) the failure of any **Electronic Equipment and/or Device** to recognize, interpret, calculate, compare, differentiate, sequence or process data consisting of, dependent on or deduced from one or more dates or times; or

(b) any change, repair, alteration, correction or modification of any part or parts of an **Electronic Equipment and/or Device** to correct or prevent any anticipated or actual condition or circumstance stated in Exclusion 4.2(a) above.

4.3 **LMA5401 Property Cyber and Data Exclusion**

(a) Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy excludes any:

i. Cyber Loss;

ii. loss, damage, liability, claim, cost, expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any

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Data, including any amount pertaining to the value of such Data; regardless of any other cause or event contributing concurrently or in any other sequence thereto.

(b) In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

(c) This endorsement supersedes and, if in conflict with any other wording in the Policy or any endorsement thereto having a bearing on Cyber Loss or Data, replaces that wording.

Definitions

(d) Cyber Loss means any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any Cyber Act or Cyber Incident including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act or Cyber Incident.

(e) Cyber Act means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any Computer System.

(f) Cyber Incident means:

i. any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any Computer System; or

ii. any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any Computer System.

(g) Computer System means:

i. any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.

(h) Data means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a Computer System.

4.3.1 Electronic Data Processing Media Valuation

Notwithstanding any provision to the contrary within the **Policy** or any endorsement thereto, it is understood and agreed as follows:

Should electronic data processing **Media** insured by this **Policy** suffer **Damage** insured by this **Policy**, then the basis of valuation shall be the cost to repair, replace or restore such **Media** to the condition that existed immediately prior to such **Damage**, including the cost of reproducing any **ELECTRONIC DATA** contained thereon, providing such **Media** is repaired, replaced or restored. Such cost of reproduction shall include all reasonable and necessary amounts, not to exceed **Sum Insured** of this **Policy** any one loss, incurred by the **Insured** in recreating, gathering and assembling such **ELECTRONIC DATA**. If the **Media** is not repaired, replaced or restored the basis of valuation shall be the cost of the blank **Media**. However, this **Policy** does not insure any amount pertaining to the value of such **ELECTRONIC DATA** to the **Insured** or any other party, even if such **ELECTRONIC DATA** cannot be recreated, gathered or assembled.

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4.4 Sanction Exclusion

Chubb shall not provide cover and **Chubb** shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose **Chubb** to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

4.5 NMA 2918 - War and Terrorism Exclusion

Notwithstanding any provision to the contrary within this **Policy** thereto it is agreed that this **Policy** excludes loss, **Damage**, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any of the following regardless of any other cause or event contributing concurrently or in any other sequence to the loss:

(a) war, invasion, acts of foreign enemies, hostilities or warlike operations (whether war be declared or not), civil war, rebellion, revolution, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power; or

(b) any **Act of Terrorism**.

For the purpose of this exclusion an **Act of Terrorism** means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This exclusion also excludes loss, **Damage**, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to Exclusion 4.5(a) and/or Exclusion 4.5(b) above.

If **Chubb** alleges that by reason of this exclusion, any loss, **Damage**, cost or expense is not covered by this **Policy** the burden of proving the contrary shall be upon the **Insured**.

In the event any portion of this exclusion is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

4.6 Nuclear and Ionising Exclusion

Notwithstanding any provision to the contrary within this **Policy** it is agreed that this **Policy** excludes loss, **Damage**, or cost or expense, directly, or indirectly, caused by, or arising from, or in consequence of, or contributed to by:

(a) nuclear weapons material; or

(b) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel. Solely for the purpose of this **Exclusion** combustion shall include any self-sustaining process of nuclear fusion.

If **Chubb** alleges that by reason of this exclusion, any loss, **Damage**, cost or expense is not covered by this **Policy** the burden of proving the contrary shall be upon the **Insured**.

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Select+® Insurance Policy

Property All Risks Section

1. Cover Applicable To This Section

1.1 The most **Chubb** will pay under this **Section** is:

(a) the **Sum Insured** on any **Property Insured**, or

(b) where indicated any other maximum amount payable or **Sum Insured**.

1.2 **Chubb** will pay the insured for:

(a) **Damage to Property**

Damage during the **Policy Period**, to **Property Insured** in the **Insured Premises** which is not excluded.

(b) **Removal of Debris (10% Of Total Sum Insured)**

Costs and expenses necessarily and reasonably incurred by the **Insured** for:

(i) removing debris from the **Insured Premises** which has suffered **Damage** and the area immediately adjacent to such **Insured Premises** so long as the **Insured Premises** has suffered **Damage**; and

(ii) dismantling, demolishing or shoring up of the **Property Insured** that has suffered **Damage**.

The most **Chubb** will pay under this Clause is 10% of Total **Sum Insured**.

(c) **Professional Fees (10% Of Total Sum Insured)**

architects', surveyors' and consultant engineers' fees necessarily and reasonably incurred in the **Reinstatement** of the **Property Insured** that has suffered **Damage** but not for preparing any claim.

The most **Chubb** will pay under this Clause is 10% of the Total **Sum Insured**.

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2. Extensions Applicable to this Section

Chubb will pay the **Insured** for **Damage** arising during the **Policy Period** within the **Policy Territory**:

2.1 Alteration and Repair

even if workmen are in or about any **Insured Premises** carrying out alterations or repairs.

2.2 Awning, Blinds, Signs and Outdoor Features

for **Damage** to awnings, blinds, signs and other outdoor fixtures and fittings that are in the **Vicinity** of the **Insured Premises** for which the **Insured** is responsible.

The most **Chubb** will pay under this Extension is SGD1,000.

2.3 Capital Additions Clause (10% of Sum Insured)

to alterations, additions and improvements (but not the appreciation in value) to **Property Insured** set out in **Schedule**.

The most **Chubb** will pay under this Extension is 10% of combined **Sums Insured** for **Buildings** and **All Other Contents** set out in the **Schedule**.

Cover under this Extension is conditioned upon the **Insured** notifying **Chubb** each quarter of such alterations, additions and improvements and on the payment of any additional premium as required by **Chubb**

2.4 Sprinkler Leakage

for **Damage** to **Property Insured** caused by discharge or leakage from any sprinkler, other than **Damage** caused by:

(a) the order of the government or of any local or other competent authority; or

(b) defects in construction or condition of which the **Insured** was aware.

2.5 Spontaneous Combustion

for **Damage** to the **Property Insured** caused by its own spontaneous combustion.

2.6 Temporary Removal (10%)

for **Damage** to **Property Insured** (other than **Stock**) whilst temporarily removed from the **Insured Premises** for cleaning, renovation or repair and whilst in transit within the **Policy Territory** to or from the **Insured Premises**.

The most **Chubb** will pay under this Extension is 10% of the **Sum Insured** for **Property Insured**, excluding **Stock**.

2.7 Theft Damage to Buildings

for **Damage** to **Buildings** at the **Insured Premises** not included in the **Property Insured** for which the **Insured** is liable caused by theft or any attempted theft.

The most **Chubb** will pay under this Extension is SGD1,000, each and every loss and in the aggregate.

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3. Definitions Applicable To This Section

In addition to the General Definitions, wherever appearing in this **Section** the following Definitions apply:

3.1 **All Other Contents** means all contents including tenants' alterations and improvements to the landlord's **Property** that the **Insured** owns or for which the **Insured** is legally responsible, including but not limited to the contents of **Buildings**.

3.2 **Buildings** means the building structure including the landlord's fixtures and fittings therein and thereon for which the **Insured** is legally responsible including but not limited to walls, gates, downpipes, guttering, fences, small outside buildings, extensions, annexes, exterior staircases, fuel installations and tanks.

3.3 **Reinstatement** means the repair, restoration, replacement or rebuilding of the **Property Insured** to a condition equivalent to or the same as, but not better or more extensive than, the **Property Insured's** condition when new.

3.4 **Stock** means stock in trade, goods in trust or on commission for which the **Insured** is legally responsible.

3.5 **Water Damage** means **Damage** caused by water or rainwater entering into the **Insured Premises** other than from a burst internal pipe.

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4. Conditions Applicable To This Section

In addition to the General Conditions, the following Conditions shall apply to this **Section**:

4.1 Automatic Reinstatement of Loss

Chubb will reinstate any **Sum Insured**, as of the date of **Damage**, for which the **Insured** shall pay the appropriate additional premium as requested by **Chubb**.

4.2 Average

If at the time of **Damage** the Total **Sum Insured** represents less than 85% of the actual value of the **Property Insured** under this **Section**, the amount payable by **Chubb** in respect of **Damage** to **Property Insured** under this **Section** shall be proportionately reduced.

4.3 Branded Goods

If **Property Insured** includes branded or labelled merchandise covered and that merchandise is **Damaged**, and **Chubb** elects to take all or any of such merchandise at the agreed or appraised value, the **Insured** may, at its own expense, stamp "salvage" on the merchandise or its containers or may remove the brands or labels, if such stamp or removal will not physically damage the merchandise, but shall re-label the merchandise or containers in compliance with the requirements of law.

4.4 Contract Price

If **Stock** was sold but not delivered and the sale contract is cancelled because of **Damage** to **Stock**, **Chubb** will pay based on the contract's sale price. For the purpose of average, the **Stock's** value will be based on the contract's sale price.

4.5 Designation

Chubb agrees to accept the **Insured's** designation of **Property Insured** as entered in the I**nsured's** books.

4.6 Hazardous Substances

Hazardous goods usual to the trade and/or **Business**, are allowed to be stored in quantities and manner as permitted by law, by-law or local regulation.

4.7 Interest

Any interest of a party supplying **Property** to the **Insured** under a hiring, leasing or similar agreement shall be disclosed by the **Insured** to **Chubb** in the event of **Damage**.

4.8 Internal Removal

If the **Property Insured** is removed from one **Building** to another covered by this **Section** and the **Insured** inadvertently does not advise **Chubb**, an adjustment to the **Sum Insured** and **Premium**, if any, will be made with effect from the date of removal once this oversight is discovered.

4.9 Minimum Security

The **Insured** must ensure when no **Insured Person** is on the **Insured Premises** all external doors and internal doors leading to common areas, or other premises are locked and secured and all ground floor and accessible windows are securely closed.

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4.10 **Indemnity**

In cases where **Damage** to **Property Insured**, can be repaired – **Chubb** may pay reasonable and necessary expenses incurred to restore, the **Damaged Property Insured**, to its former state of serviceability, plus the cost of dismantling and re-erection incurred for the purpose of effecting the repairs, as well as ordinary freight to and from a repair shop, customs duties and dues, if any, to the extent such expenses have been included in the **Sum Insured**. If the repairs are executed at a workshop owned by the **Insured**, **Chubb** shall pay the cost of materials and wages incurred for the purpose of the repairs plus, a reasonable percentage to cover overhead charges.

No deduction shall be made for depreciation in respect of parts replaced, but the value of any salvage shall be taken into account.

If the cost of these repairs equals or exceeds the actual value of the **Property Insured** immediately before the **Damage**, the **Property Insured** shall be regarded as destroyed and settlement shall be made on the basis provided under Condition 4.11 Reinstatement.

4.11 **Reinstatement**

In the event of **Damage** to **Property Insured** (other than **Stock**) **Chubb**, may at its option reinstate or replace the **Property Insured** or any part thereof, instead of paying the amount of the **Damage**, or may join with any other company, or insurers, in so doing.

Chubb shall not be bound to reinstate exactly or completely, but only as circumstances permit and in reasonably sufficient manner and in no case shall **Chubb** be bound to expend more in reinstatement than it would have cost to reinstate such **Property Insured** as it was immediately before the **Damage**.

If **Chubb** elects to reinstate or replace any **Property Insured** the **Insured** shall, at its own expense, furnish **Chubb** with such plans, specifications, measurements, quantities, and such other particulars as **Chubb** may require, and no acts done, or caused to be done by **Chubb** with a view to reinstatement or replacement shall be deemed an election by **Chubb** to reinstate or replace.

If in any case **Chubb** shall be unable to reinstate or repair the **Property Insured** because of any legislation, subsidiary legislation, rules and regulations and any amendment thereto in force affecting the alignment of streets, or the construction of **Buildings**, or the use of the land, or otherwise, **Chubb** shall, in every such case, only be liable to pay such sum as would be requisite to reinstate or repair such **Property Insured** if the same could lawfully be reinstated to its former condition.

Under no circumstance shall **Chubb** pay more than the **Sum Insured**.

4.12 **Sue and Labour**

In case of actual loss, it shall be lawful and necessary for the **Insured**, its factors, servants and assigns, to sue, labour and travel for, in and about the defence, safeguard and recovery of the **Property Insured** and part thereof without prejudice to this **Policy**, nor shall the acts of the **Insured** or **Chubb** in recovering, saving and preserving the **Property Insured** in case of **Damage**, be considered a waiver or an acceptance of abandonment. The reasonable expense so incurred subject to a maximum of SGD50,000 for any one **Insured Event**, shall be borne by the **Insured** and **Chubb** proportionately to the extent of their respective interests.

If the actual value of the **Property Insured** is greater than the **Sum Insured** immediately before the **Damage** that gives rise to such expenditure, the amount recoverable under this Condition shall be reduced in proportion.

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4.13 **Time Limit**

Chubb will not pay for any **Damage** twelve months after the happening of the **Damage** unless the claim made under this **Section** is the subject of pending action or arbitration.

5. Exclusions Applicable To This Section

In addition to the General Exclusions, the following Exclusions shall apply and **Chubb** will not cover:

5.1 Damage to Property Exclusion

(a) **Damage** to **Property** caused by:

(i) faulty or defective design, materials, or workmanship, inherent vice, latent defect, gradual deterioration, deformation or distortion or wear and tear; or

(ii) interruption of the water supply, gas, electricity or fuel systems or failure of the effluent disposal systems to or from the **Insured Premises**,

unless **Damage** by a cause not excluded ensues and then **Chubb** will only pay for such ensuing **Damage** to **Property Insured**.

(b) **Damage** to **Property** caused by:

(i) collapse or cracking of **Buildings**; or

(ii) corrosion, rust, extremes or change in temperature, dampness, dryness, wet or dry rot, fungus, shrinkage, evaporation, loss of weight, **Pollution**, contamination, change in colour flavour texture or finish, action of light, vermin, insects, marring or scratching,

(iii) cracking, fracturing, collapse or overheating of boilers economisers vessels, tubes or pipes, nipple leakage or the failure of welds of boilers;

(iv) mechanical or electrical breakdown or derangement of machinery or equipment; or

(v) bursting, overflowing, discharging or leaking of water tanks apparatus or pipes when the premises are Vacant for a period in excess of 14 days,

unless **Property Insured** is **Damaged** by a cause not excluded.

(c) **Damage** caused by

(i) theft, unless

1. the theft is from a **Building**; and

2. there is violent or forcible entry to or exit from such **Building**; or

3. "applicable" is selected in the **Schedule** for the Additional Extension 2.17 "Theft Endorsement (Full Theft)";

(ii) acts of fraud or dishonesty;

(iii) disappearance, unexplained or inventory shortage, misfiling or misplacing of information, shortage in supply or delivery of materials, or shortage due to clerical or accounting error;

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(d) **Damage** to **Property** caused by:

(i) coastal or river erosion;

(ii) Subsidence, ground heave or landslip;

(iii) normal settlement or bedding down of new structures;

(iv) wind, rain, hail, flood, sand or dust to moveable property in the open or in open sided **Buildings** or to fences and gates; or

(v) the freezing, solidification or inadvertent escape of molten material.

5.2 **Property Exclusion**

(a) **Damage** to **Property** caused by:

(i) any wilful act or gross negligence on the part of the **Insured**, or any person acting on its behalf;

(ii) cessation of work, delay, or loss of market, or any other consequential or indirect loss of any kind or description whatsoever;

(iii) permanent or temporary dispossession of any **Buildings** resulting from confiscation, nationalisation, commandeering or requisition by any lawfully constituted authority; or

(iv) permanent or temporary dispossession of any **Building** resulting from the unlawful occupation of such **Building** by any person,

provided that **Chubb** is not relieved of any liability to the **Insured** in respect of **Damag**e to the **Property Insured** occurring before dispossession or during temporary dispossession which is otherwise insured by this **Section**.

5.3 **Microorganism Exclusion (Map) (Absolute)**

Damage, directly or indirectly arising out of or relating to:

mould, mildew, fungus, spores or other microorganism of any type, nature, or description, including but not limited to any substance whose presence poses an actual or potential threat to human health.

This Exclusion applies regardless of whether there is:

(a) **Damage** to **Property**;

(b) any cause, whether or not contributing concurrently or in any sequence;

(c) any loss of use, occupancy, or functionality; or

(d) any action required, including but not limited to repair, replacement, removal, clean up, abatement, disposal, relocation, or steps taken to address medical or legal concerns.

5.4 **Political Risks Exclusion**

Damage, including costs or expenses of whatsoever nature directly or indirectly caused by, resulting from or in connection with any of the following, regardless of any other cause or event contributing concurrently or in any other sequence to the loss:

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Confiscation; expropriation; nationalization; commandeering; requisition or **Damage** to **Property** by order of the government de jure or de facto or any public, municipal or local authority of the country or area in which the **Property** is situated; and/or seizure or destruction under quarantine or customs regulation.

5.5 **Seepage and/or Pollution and/or Contamination Exclusion**

Damage, including costs or expenses of whatsoever nature directly or indirectly caused by, resulting from in connection with any kind of description of seepage and/or **Pollution** and/or contamination, directly arising from any cause whatsoever.

Nevertheless if fire is not excluded from this **Section** and a fire arises directly from seepage and/or pollution and/or contamination any **Damage** insured under this **Section** arising directly from that fire shall (subject to the terms, Conditions, Exclusions and limitations of the **Policy**) be covered.

5.6 **Transmission & Distribution Lines Exclusion**

Damage in respect of all overhead transmission and distribution lines including but not limited to wire, cables, poles, pylons, standards, towers, or other supporting structures which may be attendant to the transmission or distribution of electrical power, telecommunications, or any other communications signals.

This Exclusion applies to such equipment even if located beyond the **Insured Premises**.

5.7 **Specific Property Exclusion**

Damage to:

(a) money, cheques, stamps, bonds, credit cards, securities of any description;

(b) Glass (other than fixed glass and sanitary ware) china, earthenware, marble, or other fragile or brittle objects;

(c) electronic installations, computers and data processing equipment

But under this Exclusion 5.7 (a), (b), (c) shall not exclude **Damage** (not otherwise excluded) caused by fire, lightning, explosion, aircraft, riot, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons, impact by any **Vehicle** or animals, earthquake, windstorm, flood, bursting overflowing discharging or leaking of water tanks, apparatus or pipes;

(d) jewellery, precious stones, precious metals, bullion, furs, curiosities, rare books, works of art valued in excess of SGD5,000 unless specifically mentioned in the **Schedule**;

(e) and **Damage** caused by explosives and contraband.

(f) **Vehicles** licensed for road use (including accessories thereon), caravans, trailers, railway locomotives, rolling stock, watercraft, aircraft or spacecraft.

(g) **Property** in transit, outside of the **Insured Premises**.

(h) land (including top-soil, back-fill drainage or culverts), driveways, pavements, roads, runways, railway lines, dams, reservoirs, canals, rigs, wells, pipelines, tunnels, bridges, docks, piers, jetties, excavations, wharves, mining, property underground and off-shore property.

(i) livestock, trees, harvested or growing crops.

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5.8 **Demolition Exclusion**

Damage to **Property** in course of demolition, construction or erection and materials or supplies in connection therewith.

5.9 **Under Going Process Exclusion**

Damage to **Property** as a result of its undergoing any process.

5.10 **Installation Exclusion**

Damage to machinery during installation, removal or reciting (including dismantling and re-erection) if **Damage** is directly attributable to such operations.

5.11 **Alteration Exclusion**

Damage to **Property** undergoing alteration, repair, testing, installation or servicing including materials and supplies therefor if **Damage** is directly attributable to the operations or work being performed thereon unless **Damaged** by a cause not otherwise excluded ensues and then **Chubb** will be liable only for such ensuing loss.

5.12 **More Specifically Insured Exclusion**

Damage to **Property** more specifically insured.

5.13 **Marine Damage Exclusion**

Damage to **Property** which at the time of the happening of such **Damage** is insured by or would but for the existence of this **Section** be insured by any marine policy or policies, except in respect of any excess beyond the amount which would have been payable under the marine policy or policies had this **Section** not been effected.

5.14 **Damage to Boilers Exclusion**

Damage to boilers, economisers, turbines or other vessels, machinery or apparatus in which pressure is used, or their contents, resulting from their explosion or rupture.

5.15 **Communicable Disease Exclusion**

Notwithstanding and superseding any other provision of this policy to the contrary, this policy does not insure any loss, damage, claim, cost, expense or other sum whatsoever, directly or indirectly arising out of, or in any way attributable or related to, connected with or occurring concurrently or in any sequence with:

(i) a **Communicable Disease**; or

(ii) the fear or threat (whether actual or perceived) of a **Communicable Disease**.

For the purposes of this endorsement, loss, damage, claim, cost, expense or other sum, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test:

(i) for a **Communicable Disease**, or

(ii) any property insured hereunder that is or may be affected by a **Communicable Disease**.

As used herein, a **Communicable Disease** means any:

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(i) physical distress, illness, or disease caused or transmitted directly or indirectly by any virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and regardless of the means of transmission; or

(ii) any virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, which is capable of causing physical distress, illness or disease.

This endorsement applies to all coverage extensions, additional coverages, exceptions to any exclusion and other coverage grant(s).

All other terms, conditions and exclusions of the policy remain the same.

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Select+® Insurance Policy

Liability Section

1. Cover Applicable To This Section

1.1 **Chubb** shall indemnify the **Insured** against all sums which the **Insured** shall become legally liable to pay as **Compensation** in respect of:

(a) **Personal Injury**;

(b) **Damage**;

first happening during the **Policy Period** within the **Policy Territory** as a result of an **Occurrence** in connection with the **Business**.

2. Extensions Applicable To This Section

Each Extension is, unless otherwise stated, subject to the Clause 1.1, Cover Applicable To This Section, and all other terms, Conditions, Exclusions and limitations of this **Policy**, including, without limitation, any applicable **Limit Of Liability**.

2.1 **Defence Costs**

In respect of any liability for **Compensation** indemnifiable under this **Section**, **Chubb** will pay **Defence Costs**, subject to the following:

(a) **Chubb** is not obliged to pay any **Defence Costs** or to defend any suit after the **Limit of Liability** has been exhausted.

(b) If a payment exceeding the **Limit of Liability** has to be made to dispose of a claim, **Chubb's** liability for **Defence Costs** is limited to the proportion that **Chubb's** liability to indemnify the **Insured** for **Compensation** under this **Section** bears to that payment.

2.2 **Sudden and Accidental Pollution**

Exclusion 5.8 Pollutants shall not apply to **Personal Injury** or **Damage** which arises from a sudden, identifiable, unintended and unexpected event from the standpoint of the **Insured**.

2.3 **Neon And Advertising Signs**

Chubb will pay for **Personal Injury** or **Damage** arising out of neon signs or advertising signboards displayed at **Insured Premises** owned, tenanted, leased or hired by the **Insured**.

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2.4 **Defective Sanitary Facilities**

Chubb will pay for **Personal Injury** or **Damage** arising out of defective sanitary facilities at **Insured Premises** owned, tenanted, leased or hired by the **Insured**.

2.5 **Food Poisoning**

Chubb will pay for **Personal Injury** arising out of food and drink sold or supplied by the **Insured** at the **Insured Premises**, subject to the **Limit of Liability**, any one **Occurrence** and in the aggregate.

The most **Chubb** will pay under this Extension is SGD10,000 any one **Occurrence**

3. Definitions Applicable To This Section

In addition to the General Definitions wherever appearing in this **Section**, the following Definitions apply:

3.1 **Compensation** means monies paid or payable by judgment or settlement together with any liability on the **Insured's** part to pay legal costs and expenses (other than **Defence Costs**).

3.2 **Defence Costs** means all reasonable legal costs and expenses incurred by **Chubb** or by the **Insured** with the written agreement of **Chubb**:

(a) in defending or appealing a claim;

(b) for legal representation at any coronial inquest or other fatal accident inquiry.

3.3 **Employment Practices** means any wrongful or unfair dismissal, denial of natural justice, defamation, misleading representation or advertising, sexual harassment or discrimination in respect of employment or prospective employment by the **Insured**.

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4. Conditions Applicable To This Section

In addition to the General Conditions the following Conditions shall apply to this **Section**:

4.1 Right To Defend

(a) **Chubb** has the right, if it so elects, to defend any suit against the **Insured** seeking **Compensation** or reimbursement of expenses for an **Occurrence** and to bring any cross claim in the name of the **Insured**, even if any of the allegations of the suit are groundless, false or fraudulent, and may make such investigation and settlement of any claim or suit as it deems expedient; but **Chubb** is not obligated to pay any claim or judgment or to defend any suit after **Chubb**'**s** liability under this **Section** in respect of the claim has been exhausted.

(b) If the cost of any **Occurrence** and defence costs and expenses are not likely to exceed the **Deductible**, **Chubb** may elect not to defend the suit. In these circumstances and subject to the provisions of this **Section**, the **Insured** is responsible for the handling and payment of the claim and its defence costs and expenses up to the amount of the **Deductible**.

(c) The **Insured** must co-operate with **Chubb** and comply with the terms, Conditions, Exclusions and limitations of this **Policy**, and assist as necessary in enforcing any right to contribution or indemnity from any person, corporation or organisation.

4.2 Cross Liability

Each of the parties comprising the **Insured** is considered a separate legal entity and the word "Insured" applies to each party as if a separate policy had been issued to each of the said parties but nothing contained in this Condition will operate to increase **Chubb's** liability under this **Section**.

4.3 Statutory Requirements

The **Insured** must take reasonable measures to comply with all statutory obligations and regulations imposed by any statutory or governmental authority.

4.4 Precautions

The **Insured** at its own expense shall take all reasonable precautions to prevent **Occurrences** which may give rise to liability under this **Section** and shall take all reasonable steps:

(a) to maintain its ways, works, machinery, plant and **Insured Premises** in good order and repair;

(b) to ensure that its **Products** are free from defect and fit for the purposes intended and comply with all statutory obligations and regulations, imposed by any authority before possession thereof is relinquished to others;

(c) to remedy any defect or danger upon discovery thereof and take such additional precautions as the circumstances may require; and

(d) in the selection of **Employees**.

4.5 Deductible

The **Deductible** applies to **Defence Costs** as well as **Compensation**. **Chubb's** liability to indemnify the **Insured** under this **Section** applies only in respect of amounts of **Defence Costs** and/or **Compensation** that exceed the **Deductible**.

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4.6 **Limits of Liability**

(a) Public Liability

Unless otherwise stated in this **Policy**, the aggregate limit of **Chubb**'**s** liability to indemnify **Compensation** arising from any one **Occurrence** is the corresponding **Limit of Liability**

(b) Product Liability

Unless otherwise stated in this **Policy**, **Chubb**'**s** maximum aggregate liability under this **Policy** for all **Occurrences** during the **Policy Period** relating to liability arising out of the **Insured**'**s Products** is the corresponding **Limit of Liability**.

5. **Exclusions Applicable To This Section**

In addition to the General Exclusions, the following Exclusions apply and **Chubb** will not cover the **Insured** or any other person for any liability directly or indirectly caused by, arising out of or in any way connected with:

5.1 **Aircraft Exclusion**

the ownership, operation or navigation of any **Aircraft** or hovercraft.

5.2 **Aircraft Products Exclusion**

any **Product** that is incorporated with the **Insured**'**s** knowledge in an **Aircraft** which is connected with the safety, propulsion, navigation or flying capabilities of an **Aircraft**.

5.3 **Asbestos Exclusion**

asbestos or materials containing asbestos.

5.4 **Contractual Liability Exclusion**

liability assumed under any contract, agreement or warranty except to the extent that such liability would have been implied by law in the absence of such contract, agreement or warranty.

5.5 **Employment Liability Exclusion**

(a) employer's liability for any **Employee's Personal Injury** arising out of and in the course of its employment by the **Insured**.

(b) any fund, scheme, policy of insurance or self-insurance pursuant to or required by any legislation relating to workers' compensation whether or not such insurance has been effected.

(c) any industrial award or agreement or determination where such liability would not have been imposed in the absence of such industrial award or agreement or determination.

(d) any **Employment Practices**.

5.6 **Fines**, **Penalties and Damages Exclusions**

fines, penalties, punitive, exemplary, liquidated or aggravated damages or multiplication of compensatory damages.

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5.7 **Loss of Use Exclusions**

loss of use of **Property**, which has not been **Damaged**, resulting from:

(a) a delay in or lack of performance by or on behalf of the **Insured** in respect of any contract or agreement; or

(b) the failure of a **Product** or work performed by or on behalf of the **Insured** to meet the level of performance, quality, fitness or durability warranted or represented by the **Insured**; but this Exclusion does not apply to loss of use of other **Property** resulting from the sudden and accidental physical **Damage** to or destruction of the **Product** or work performed by or on behalf of the **Insured** after the **Product** or work has been put to its intended use by any person or organisation other than the **Insured**.

5.8 **Pollutants Exclusion**

(a) the discharge, dispersal, release, seepage, migration or escape of **Pollutants**, including, without limitation, the cost of testing, monitoring, treating, detoxifying, removing, neutralising or cleaning up **Pollutants**; or

(b) the cost of preventing the escape of **Pollutants**.

5.9 **Product Defect Exclusion**

Damage to:

(a) any **Product** or any part of it if such **Damage** is attributable to any defect therein or the harmful nature or unsuitability thereof however this Exclusion shall not apply to **Personal Injury** or **Damage** resulting therefrom; or

(b) any part of any **Property** that must be repaired, reconditioned or replaced by reason of incorrect work performed by the **Insured** or on the **Insured's** behalf, or by reason of materials or equipment which are or are proved to be defective or inadequate in connection with such work, but this Exclusion does not apply to **Damage** resulting from such work.

5.10 **Product Guarantee Exclusion**

any product guarantee or warranty given by or on behalf of the **Insured**, but this Exclusion does not apply to legislative requirements concerning product safety and information.

5.11 **Product Recall Exclusion**

the withdrawal, recall, inspection, repair, adjustment, removal, replacement or loss of use of any **Product** or work completed by or for the **Insured** and/or the withdrawal or recall of any **Property** of which such **Products** form a part.

5.12 **Professional Liability Exclusion**

the rendering of or failure to render professional advice or service by the **Insured**, but this Exclusion does not apply to the provision of first aid on the **Insured's Premises** by medical persons employed by the **Insured**.

5.13 **Property in the Insured's Care**, **Custody or Control Exclusion**

Damage to **Property** owned by the **Insured** or in the **Insured's** care custody or control other than when stated elsewhere in this **Section**.

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5.14 **Radioactivity Exclusion**

ionising radiation or contamination by radioactivity from any nuclear fuel, weapon or waste whether occurring naturally or otherwise; the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof; or the storage, transport, assembly, disassembly, maintenance or operation of any nuclear weapon or nuclear component thereof.

5.15 **USA/Canada Domiciled Operations Exclusion**

any of the **Insured's** operations domiciled in the United States of America, Canada and their respective protectorates and territories.

5.16 **Vehicles Exclusion**

the use of any **Vehicle** owned by, or in the physical or legal control of the **Insured**, which is required by law to be registered and/or in respect of which insurance is required by virtue of any legislation, but this Exclusion does not apply to:

(a) a **Vehicle** (other than a **Vehicle** owned or used by or on behalf of the **Insured**) whilst that **Vehicle** is in a car park owned or operated by the **Insured** other than for income or reward as a car park operator;

(b) **Personal Injury** or **Damage** occurring during the loading or unloading of a **Vehicle** caused by or arising from the collection or delivery of any goods from or to the **Vehicle** where such **Personal Injury** or **Damage** occurs beyond the limits of any carriageway or thoroughfare, and where applicable legislation does not require insurance against such liability;

(c) **Personal Injury** or **Damage** caused by the use of any tool, plant or equipment forming part of or attached to or used in connection with any **Vehicle** and where applicable legislation does not require insurance against such liability; and/or

(d) **Personal Injury** where the insurance required by virtue of any legislation does not provide indemnity, and the lack of indemnity is not due to a breach of legislation relating to **Vehicles**.

5.17 **Watercraft Exclusion**

the ownership, operation or navigation of any **Watercraft** exceeding 10 metres in length while on, in or under the water.

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About Chubb in Singapore

Chubb is the world's largest publicly traded property and casualty insurer. Chubb Insurance Singapore Limited, via acquisitions by its predecessor companies, has been present in Singapore since 1948. Chubb in Singapore provides underwriting and risk management expertise for all major classes of general insurance. The company's product offerings include Financial Lines, Casualty, Property, Marine, Industry Practices as well as Group insurance solutions for large corporates, multinationals, small and medium-sized businesses. In addition, to meet the evolving needs of consumers, it also offers a suite of tailored Accident & Health and Personal & Specialty insurance options through a multitude of distribution channels including bancassurance, independent distribution partners and affinity partnerships.

Over the years, Chubb in Singapore has established strong client relationships by delivering responsive service, developing innovative products and providing market leadership built on financial strength.

More information can be found at www.chubb.com/sg.

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Select+® Insurance Policy. Policy Wording. Singapore. Published 07/2020.

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